

is materially different from that of co-trustees. An executor has, independently of his co-executor, a full and absolute control over the personal assets of the testator. If an executor join with a co-executor in a receipt, he does a wanton and unnecessary act; he interferes when the nature of the office lays upon him no such obligation, and therefore it was a rule very early established, that if executors joined in receipts, they should be answerable, each *in solido*, for the amount of the money received (c).

7. **Westley v. Clarke.** — In *Westley v. Clarke* (d), Lord Northington expressed an opinion that aimed at breaking down the rule; and by his decision of that case he succeeded in establishing a qualification of it.

(c) *Aplyn v. Brewer*, Pr. Ch. 173; *Murrell v. Cox*, 2 Vern. 560; *Ex parte Belchier*, Amb. 219, *per* Lord Hardwicke; *Leigh v. Barry*, 3 Atk. 584, *per eundem*; *Harrison v. Graham*, 3 Hill's MSS. 239, *per eundem*; cited 1 P. W. 241, 6th ed. note (y); *Darwell v. Darwell*, 2 Eq. Ca. Ab. 456; *Gregory v. Gregory*, 2 Y. & C. 316, *per* Baron Alderson.

(d) 1 Eden, 357; S. C. 1 Dick. 329; and see *Candler v. Tillett*, 22 Beav. 257; *Harden v. Parsons*, 1 Eden, 147,

148. Yet in *Churchill v. Hobson*, 1 P. W. 241, note (1) by Mr. Cox, his Lordship is reported to have said, according to a note of the case by Sir L. Kenyon, that in *Westley v. Clarke* he should have thought the co-executors liable if they had been present at the time the money was paid; and Lord Redesdale, in *Doyle v. Blake*, 2 Sch. & Lef. 242, 243, seemed to think that Lord Northington had no intention of *breaking down*, but only of *qualifying* the rule.

make it easy for a co-executor to misapply the funds of the estate he will be liable; *Adair v. Brimmer*, 74 N. Y. 539; *Edmonds v. Crenshaw*, 14 Pet. 166; *Sparhawk v. Buell*, 9 Vt. 41. An executor may become liable for his negligence and ignorance regarding estate funds; *Clark v. Clark*, 8 Paige, 152; also if he fail to require within a reasonable time payments due the estate by his co-executor; *Carter v. Cutting*, 5 Munf. 223. The liability of joint administrators is the same as that of co-trustees; *Murray v. Blatchford*, 1 Wend. 583; *O'Neill v. Herbert*, 1 McMul. Eq. 495. These rules are of much less importance in America than in England because here trustees, executors, administrators, etc., are required, unless there is a waiver by the proper parties, to give a bond for the faithful performance of their duties, and very often the bond required is a joint one, giving a remedy against all, for a breach by either, whether the misconduct was joint or only by one; *Ames v. Armstrong*, 106 Mass. 35; *Towne v. Ammidon*, 20 Pick. 535; *Hill v. Davis*, 4 Mass. 137; *Newcomb v. Williams*, 9 Met. 525; *Jeffries v. Lawson*, 39 Miss. 791; *Anderson v. Miller*, 6 J. J. Marsh. 568; *Braxton v. State*, 25 Ind. 82; *Babcock v. Hubbard*, 2 Conn. 539; but the estate of a deceased executor is not liable for any act of a co-executor after his death; *Brazer v. Clark*, 5 Pick. 96; *Towne v. Ammidon*, 20 Pick. 535. Where the bonds given are separate, there is the same absence of liability as first laid down; *McKim v. Aubach*, 130 Mass. 481.